

District: Jessore

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present

Mr. Justice Sardar Md. Rashed Jahangir

Civil Revision No. 1867 of 2024

In the matter of :

Md. Shariful Islam

... Petitioner

-Versus-

Most. Farhana Akter

...Opposite-party

Mr. Md. Al-Hasan, Advocate

...for the petitioner

Mr. Amio Chakrabarti, Advocate

...For the opposite-party

Heard on: 24.10.2024

Judgment on: 07.11.2024

Rule was issued on an application under section 115(1) of the Code of Civil Procedure calling upon the opposite-party to show cause as to why the judgment and order dated 21.06.2023 passed by the District Judge, Jessore in Family Appeal No. 17 of 2023 dismissing the appeal affirming the judgment and order dated 04.06.2023 passed by the Family Court and Assistant Judge, Jhikargacha, Jessore in Family Suit No. 142 of 2022 rejecting the application for stay of further proceedings of

Family Suit No. 142 of 2022, pending hearing of the C. R. Case No. 260 of 2022 of the Chief Metropolitan Magistrate, Dhaka and Other Class Suit No. 1669 of 2022 should not be set aside and/or such other or further order or orders as to this Court may seem fit and proper.

The present opposite party as plaintiff filed Family Suit No. 142 of 2022 before the Family Court, Jessore sought for a decree for dower and monthly maintenance. The defendant-petitioner appeared before the Court and filed written statement denying all the averments of the plaint. On 04.06.2023 the defendant filed an application before the family Court, Jessore sought for staying of all further proceedings of Family Suit No. 142 of 2022 during pendency of the C. R. Case No. 260 of 2022 of the Court of Chief Metropolitan Magistrate, Dhaka and Other Class Suit No. 1669 of 2022 pending before the Senior Assistant Judge, Second Court, Dhaka. Learned Judge of the family Court after hearing the application by his order dated 04.06.2023 rejected the same.

Having been aggrieved by the order dated 04.06.2023 passed by the Family Court, Jessore, the defendant filed Family Appeal No. 17 of 2023 before the District Judge, Jessore and learned District Judge after hearing by his judgment and order

dated 21.06.2023 rejected the appeal summarily and thereby affirmed the order dated 04.06.2024 passed by the Family Court, Jessore.

On being aggrieved by and dissatisfied with the aforesaid order of learned District Judge, the defendant filed this revisional application and obtained the Rule together with an order of stay.

Mr. Md. Al-Hasan, learned Advocate for the petitioner submits that the appellate Court below failed to consider that the plaintiff created a forged and fake kabinnama inserting a fake amount of Tk.20,00,000/- (twenty lac) as dower in collusion with some others, behind the back of the defendant and as such the defendant filed a complaint petition being C.R. No. 260 of 22 under section 406/423/465/468/471 of the Penal Code, 1860 now pending before the Chief Metropolitan Magistrate, Dhaka. He further submits that the defendant also filed a suit before the Senior Assistant Judge, Second Court, Dhaka challenging the legality and authenticity of the kabinnama in question, created by the plaintiff for the purpose of family suit and both the cases i.e. civil case and criminal case are pending before the Senior Assistant Judge, Second Court, Dhaka and before the Chief Metropolitan Magistrate, Dhaka and if the family suit is disposed of before adjudication of the aforesaid 2(two) cases, then the

defendant-petitioner shall be highly prejudiced and as such he prayed for making the Rule absolute and thereby allowing the application for stay of all further proceedings of the Family Suit No. 142 of 2022.

On the other hand, Mr. Amio Chakrabarti, learned Advocate appearing for the plaintiff-opposite party submits that the hearing and disposal of the suit pending before the family Court is independent and there is no nexus with the aforesaid 2(two) cases and the claim of the defendant as to the forgery and forced kabinnama is very much can be ascertained and decided independently in the family suit and thus, both the Courts below justly and legal rejected the application for stay and in view of the above, he prayed for discharging the Rule.

It appears that the opposite party No. 1 as plaintiff on 13.10.2020 filed Family Suit No. 190 of 2020 before the Family Court and Assistant Judge, Jhikargacha, Jessore, which was renumbered as Family Suit No. 142 of 2022 with the prayer for a direction upon the defendant to pay the plaintiff's dower and monthly maintenance at the rate of Tk.10,000/- (Ten thousand) from 23.08.2019 to 23.09.2020 contending, *inter-alia*, that the plaintiff and defendant got marriage as per Muslim Shariah and existing law of the country on 19.05.2017 fixing dower of

Tk.20,00,000/-(twenty lac), out of which Tk.2,20,000/- (two lac twenty thousand) was paid as ushal. The marriage was solemnized and registered on the same day. Later on the defendant demanding dower of Tk.7,00,000/-(seven lac) and started torture upon the plaintiff and as a result, the plaintiffs were compelled to stay at the paternal house of the plaintiff No. 1. The defendant denied to provide maintenance of the plaintiffs and as such they were constrained to file the suit.

The defendant contested the suit by filing written statement contending, inter-alia, that on 19.05.2017 as per Muslim Shariah and existing law of the country the defendant got marriage the plaintiff fixing dower of Tk.2,00,000/- at the presence of plaintiffs in-mates. The marriage took place at Sanzi Thai and Chinese Restaurant, Badda, Dhaka. It is also stated that at the time of marriage no one from the defendant's family was present in the ceremony. Taking the advantage of aforesaid circumstances the plaintiff forged the kabinnama by inserting the amount of Tk.20,00,000/-(twenty lac) in place of Tk.2,00,000/- (two lac). The defendant already paid Tk.2,20,000/- (two lac twenty thousand) to the plaintiff No. 1. Thus, the plaintiff No. 1 is not entitled to get any more dower from the defendant.

During pendency of the suit the defendant filed an application before the family Court for examine the handwriting of the kabinnama by handwriting expert and while the said application was pending, on 04.06.2023, the defendant filed an application praying for stay of all further proceedings of Family Suit No. 142 of 2022 contending, *inter-alia* that the defendant has already filed a criminal case against the plaintiff No. 1 and others with the allegation of forgery which is pending before the Chief Metropolitan Magistrate, Dhaka and also filed a civil suit before the Senior Assistant Judge, Second Court, Dhaka challenging the legally and authenticity of the forged kabinnama, using by the plaintiff for the purpose of the family suit. Learned Assistant Judge by his order dated 04.06.2023 rejected the application for stay. Challenging the aforesaid order of the Family Court, the defendant preferred Family Appeal No. 17 of 2023 before the District Judge, Jessore and learned District Judge by his order dated 21.06.2023 rejected the appeal summarily.

From the record, it appears that the present suit is a family suit, through which the plaintiff claimed dower and maintenance and the defendant made appearance in the suit and claimed that the submitted kabinnama is a forged one. To substantiate his claim also filed an application for examining the handwriting of

the kabinnama by a handwriting expert. The said application is also pending before Family Court. Although, the defendant claimed that he filed a civil suit wherein the kabinnama in question has been challenged, but this Court is of the opinion that the Family Court is quite competent to adjudge and ascertain the legality or authenticity of the kabinnama or fixation of dower by taking proper evidences or even taking the assistance of specialized person, such a handwriting expert; thus, I am of the view that both the Courts below did not commit any illegality in rejecting the application for stay. Accordingly, I do not find any merit in the Rule.

However, since the defendant specially challenged the authenticity and legality of the kabinnama and claimed insertion of a fake amount of dower in the said kabinnama and for the said purpose he has filed an application for examining the handwriting or etc. by a handwriting expert; thus, the Family Court is hereby directed to dispose of the said application and send the kabinnama or related documents for examining through the handwriting expert if so necessary. It has been also claimed by the defendant that the plaintiff's earlier marriage through kabinnama was solemnized fixing the dower money at Tk.50,000/- (the present marriage is the second marriage of the plaintiff), the kabinnama of her (plaintiff) brother was registered

fixing the dower money at Tk.70,000/- and the defendant is a third class employee, thus, it is argued that it is quite absurd to fix the dower at Tk.20,00,000/-. On the other hand, it is the contention of the defendant that the dower was fixed at Tk.2,00,000/- (two lac) at the time of present marriage.

In view of the above, the Family Court is further directed to provide the defendant adequate opportunity to adduce evidences to substantiate his claim.

With the above direction and observation, the Rule is discharged without any order as to cost.

The order of stay granted at the time of issuance of the Rule is hereby recalled.

Communicate the judgment and order at once.